



Notification Waiver Determination

Waymark Hotels Group – The Queensland Hotel, Goondiwindi, QLD

Acquisition	QL Hotel Op Co Pty Ltd and Waymark Hotels Properties No 45 Pty Ltd as trustee for the Goondiwindi Property Trust (the Acquirers) applied for a notification waiver in respect of their proposed acquisition of the land and business of the Queensland Hotel in Goondiwindi, Queensland and the land comprising the nearby motel and residential premises on adjoining and adjacent blocks (the Queensland Hotel), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	30 September 2026

Parties to the Acquisition	The Acquirers are part of the Waymark Hotels Group which owns and operates hotels (pubs) that provide food, drink (including alcohol), gaming, accommodation services, and takeaway liquor retailing (bottle shops). The Waymark Hotels Group currently operates pubs and bottle shops in regional Qld and the NT. It is part of the Vinta Group, a private real estate group. The target, the Queensland Hotel, is a commercial hotel business in Goondiwindi, Queensland, which offers hospitality and accommodation services and has a drive-through bottle shop for the retail service of alcohol. In addition to the accommodation offered onsite at the Queensland Hotel, the target has further motel accommodation facilities and a residential premises on adjoining and adjacent blocks.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to material competition concerns given there is no horizontal overlap between the Waymark Hotels Group and the Queensland Hotel in the supply of on-premises and takeaway packaged liquor, dining, gaming and accommodation services in the area surrounding the Queensland Hotel. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.

	Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
--	---

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act